

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1816

By: Newton

AS INTRODUCED

An Act relating to Medicaid; amending 63 O.S. 2021, Section 5060, which relates to out-of-state medical providers; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 5060, is amended to read as follows:

Section 5060. A. Where practicable and in accordance with state and federal law, the state Medicaid program shall not contract with an out-of-state medical provider for treatment that is available from one or more providers licensed and practicing in the State of Oklahoma. For the purposes of this section, "treatment" shall refer to services that require the physical presence of the patient and the direct care of a medical provider. Services that are conducted remotely, including laboratory analysis or diagnostic processing, shall not be considered treatment under this section.

B. The Oklahoma Health Care Authority shall seek any federal approval necessary to implement the provisions of this section.

SECTION 2. This act shall become effective November 1, 2025.

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